PART II

The Government of the Republic of Malawi
Ministry of Finance, Economic Planning and Development

CONTRACT FOR CONSULTANTS' SERVICES

Time-Based

between

Ministry of Finance, Economic Planning and Development

and

Joint Venture of Korea Rural Community Corporation and Dasan Consultants Co., Ltd.
(Consultant)

Name of Contract: Supervision of Rehabilitation Works for Flood Protection Structures

Contract No.: 027/MFERP/G/S/15/15(b)

Date: 27th June, 2018

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I. Form of Contract

TIME-BASED

THE GOVERNMENT OF THE REPUBLIC OF MALAWI
MINISTRY OF FINANCE, ECONOMIC PLANNING AND DEVELOPMENT
MALAWI FLOODS EMERGENCY RECOVERY PROJECT

Contract No. 027/MFERP/S/15/15(b)

This CONTRACT (hereinafter called the "Contract") is made the 27th day of the month of June, *2018* between, on the one hand, **The Secretary For Finance, Economic Planning and Development** (hereinafter called the "Client") and, on the other hand, **Korea Rural Community Corporation of 20, Geurin-ro, Naju-si, Jeollanam-do, Republic of Korea** and Dasan Consultants Co., Ltd., of Gumijungang-ro42gil, Gumi-si, Gyeongsangbuk-do, Republic of Korea. (hereinafter called the "Consultant")

WHEREAS

(a) the Client has requested the Consultant to provide certain consulting services as defined in this Contract (hereinafter called the "Services");

(b) the Consultant, having represented to the Client that it has the required professional skills, expertise and technical resources, has agreed to provide the Services on the terms and conditions set forth in this Contract for **USD541,175.00**(say United States Dollar Five Forty One Thousand, One Hundred Seventy Five) inclusive of local taxes.

(c) the Client has received Credit from *International Development Association*

(IDA)] toward the cost of the Services and intends to apply a portion of the proceeds of this credit to eligible payments under this Contract, it being understood that (i) payments by the Bank will be made only at the request of the Client and upon approval by the Bank; (ii) such payments will be subject, in all respects, to the terms and conditions of the financing agreement, including prohibitions of withdrawal from the credit account for the purpose of any payment to persons or entities, or for any import of goods, if such payment or import, to the knowledge of the Bank, is prohibited by the decision of the United Nations Security council taken under Chapter VII of the Charter of the United Nations; and (iii) no party other than the Client shall derive any rights from the financing agreement or have any claim to the credit proceed

NOW THEREFORE the parties hereto hereby agree as follows:

1. The following documents attached hereto shall be deemed to form an integral part of this Contract:
   (a) The General Conditions of Contract (including Attachment 1 "Bank Policy –Corrupt and Fraudulent Practices);
   (b) The Special Conditions of Contract;
   (c) Appendices:

   Appendix A: Terms of Reference
   Appendix B: Key Experts
   Appendix C: Remuneration Cost Estimates
   Appendix D: Reimbursables Cost Estimates
   Appendix E: Form of Advance Payments Guarantee

   In the event of any inconsistency between the documents, the following order of precedence shall prevail: the Special Conditions of Contract; the General Conditions of Contract, including Attachment 1; Appendix A; Appendix B; Appendix C and Appendix D; Appendix E. Any reference to this Contract shall include, where the context permits, a reference to its Appendices.

2. The mutual rights and obligations of the Client and the Consultant shall be as set forth in the Contract, in particular:

   (a) the Consultant shall carry out the Services in accordance with the provisions of the Contract; and
   (b) the Client shall make payments to the Consultant in accordance with the provisions of the Contract.

I. Form of Contract Time-Based

For and on behalf of the Client:
Name: Dickxie Kampani
Title : Project Coordinator.
Signature:.....

Project Coordinator
Malawi Floods Emergency
Recovery Project (MFERP)
2018 -06- 27
Private Bag A192
Lilongwe

Witness:
Name: Goli Mwanza
Title : Procurement Specialist
Signature:.....

For and on behalf of the Consultant: Korea Rural Community Corporation in joint venture with Dasan Consultants Co. Ltd
Name: Bang, Sungsoo
Title : Director of S. America & Africa Dept.
Signature:.....

Witness:
Name: YOO, Jaeweon
Title : President, Dasan Consultants Co., Ltd.
Signature:.....

II. General Conditions of Contract

A. General Provisions

1. Definitions

1.1. Unless the context otherwise requires, the following terms whenever used in this Contract have the following meanings:

(a) "Applicable Guidelines" means the Guidelines for Selection and Employment of Consultants under IBRD Loans and IDA Credits & Grants by World Bank Borrowers, dated January 2011 ("Consultants' Guidelines").

(b) "Applicable Law" means the laws and any other instruments having the force of law in the Client's country, or in such other country as may be specified in the **Special Conditions of Contract (SCC)**, as they may be issued and in force from time to time.

(c) "Bank" means the International Bank for Reconstruction and Development (IBRD) or the International Development Association (IDA).

(d) "Borrower" means the Government, Government agency or other entity that signs the financing agreement with the Bank.

(e) "Client" means the implementing agency that signs the Contract for the Services with the Selected Consultant.

(f) "Consultant" means a legally-established professional consulting firm or entity selected by the Client to provide the Services under the signed Contract.

(g) "Contract" means the legally binding written agreement signed between the Client and the Consultant and which includes all the attached documents listed in its paragraph 1 of the Form of Contract (the General Conditions (GCC), the Special Conditions (SCC), and the Appendices).

(h) "Day" means a working day unless indicated otherwise.

(i) "Effective Date" means the date on which this Contract comes into force and effect pursuant to Clause GCC 11.

(j) "Experts" means, collectively, Key Experts, Non-Key Experts, or any other personnel of the Consultant, Sub-consultant or JV member(s) assigned by the Consultant to perform the Services or any part thereof under the Contract.

(k) "Foreign Currency" means any currency other than the currency of the Client's country.

(l) "GCC" means these General Conditions of Contract.

(m) "Government" means the government of the Client's country.

(n) "Joint Venture (JV)" means an association with or without a legal personality distinct from that of its members, of more than one entity where one member has the authority to conduct all businesses for and on behalf of any and all the members of the JV, and where the members of the JV are jointly and severally liable to the Client for the performance of the Contract.

(o) "Key Expert(s)" means an individual professional whose skills, qualifications, knowledge and experience are critical to the performance of the Services under the Contract and whose Curricula Vitae (CV) was taken into account in the technical evaluation of the Consultant's proposal.

(p) "Local Currency" means the currency of the Client's country.

(q) "Non-Key Expert(s)" means an individual professional provided by the Consultant or its Sub-consultant to perform the Services or any part thereof under the Contract.

(r) "Party" means the Client or the Consultant, as the case may be, and "Parties" means both of them.

(s) "SCC" means the Special Conditions of Contract by which the GCC may be amended or supplemented but not over-written.

(t) "Services" means the work to be performed by the Consultant pursuant to this Contract, as described in Appendix A hereto.

(u) "Sub-consultants" means an entity to whom/which the Consultant subcontracts any part of the Services while remaining solely liable for the execution of the Contract.

(v) "Third Party" means any person or entity other than the Government, the Client, the Consultant or a Sub-consultant.

2. Relationship between the Parties

2.1. Nothing contained herein shall be construed as establishing a relationship of master and servant or of principal and agent as between the Client and the Consultant. The Consultant, subject to this Contract, has complete charge of the Experts and Sub-consultants, if any, performing the Services and shall be fully responsible for the Services performed by them or on their behalf hereunder.

3. **Law Governing Contract**

3.1. This Contract, its meaning and interpretation, and the relation between the Parties shall be governed by the Applicable Law.

4. **Language**

4.1. This Contract has been executed in the language specified in the **SCC**, which shall be the binding and controlling language for all matters relating to the meaning or interpretation of this Contract.

5. **Headings**

5.1. The headings shall not limit, alter or affect the meaning of this Contract.

6. **Communications**

6.1. Any communication required or permitted to be given or made pursuant to this Contract shall be in writing in the language specified in Clause GCC 4. Any such notice, request or consent shall be deemed to have been given or made when delivered in person to an authorized representative of the Party to whom the communication is addressed, or when sent to such Party at the address specified in the **SCC**.

6.2. A Party may change its address for notice hereunder by giving the other Party any communication of such change to the address specified in the **SCC**.

7. **Location**

7.1. The Services shall be performed at such locations as are specified in **Appendix A** hereto and, where the location of a particular task is not so specified, at such locations, whether in the Government's country or elsewhere, as the Client may approve.

8. **Authority of Member in Charge**

8.1. In case the Consultant is a Joint Venture, the members hereby authorize the member specified in the **SCC** to act on their behalf in exercising all the Consultant's rights and obligations towards the Client under this Contract, including without limitation the receiving of instructions and payments from the Client.

9. **Authorized Representatives**

9.1. Any action required or permitted to be taken, and any document required or permitted to be executed under this Contract by the Client or the Consultant may be taken or executed by the officials specified in the **SCC.**

10. **Corrupt and Fraudulent Practices**

10.1. The Bank requires compliance with its policy in regard to corrupt and fraudulent practices as set forth in **Attachment 1** to the GCC.

a. **Commissions and Fees**

10.2. The Client requires the Consultant to disclose any commissions or fees that may have been paid or are to be paid to agents or any other party with respect to the selection process or execution of the Contract. The information disclosed must include at least the name and address of the agent or other party, the amount and currency, and the purpose of the commission, gratuity or fee. Failure

to disclose such commissions, gratuities or fees may result in termination of the Contract and/or sanctions by the Bank.

B. COMMENCEMENT, COMPLETION, MODIFICATION AND TERMINATION OF CONTRACT

11. Effectiveness of Contract

11.1. This Contract shall come into force and effect on the date (the "Effective Date") of the Client's notice to the Consultant instructing the Consultant to begin carrying out the Services. This notice shall confirm that the effectiveness conditions, if any, listed in the **SCC** have been met.

12. Termination of Contract for Failure to Become Effective

12.1. If this Contract has not become effective within such time period after the date of Contract signature as specified in the **SCC**, either Party may, by not less than twenty two (22) days written notice to the other Party, declare this Contract to be null and void, and in the event of such a declaration by either Party, neither Party shall have any claim against the other Party with respect hereto.

13. **Commencement of Services**

13.1. The Consultant shall confirm availability of Key Experts and begin carrying out the Services not later than the number of days after the Effective Date specified in the **SCC**.

14. **Expiration of Contract**

14.1. Unless terminated earlier pursuant to Clause GCC 19 hereof, this Contract shall expire at the end of such time period after the Effective Date as specified in the **SCC**.

15. **Entire Agreement**

15.1. This Contract contains all covenants, stipulations and provisions agreed by the Parties. No agent or representative of either Party has authority to make, and the Parties shall not be bound by or be liable for, any statement, representation, promise or agreement not set forth herein.

16. **Modifications or Variations**

16.1. Any modification or variation of the terms and conditions of this Contract, including any modification or variation of the scope of the Services, may only be made by written agreement between the Parties. However, each Party shall give due consideration to any proposals for modification or variation made by the other Party.

16.2. In cases of substantial modifications or variations, the prior written consent of the Bank is required.

17. **Force Majeure**

a. Definition

17.1. For the purposes of this Contract, "Force Majeure" means an event which is beyond the reasonable control of a Party, is not foreseeable, is unavoidable, and makes a Party's performance of its obligations hereunder impossible or so impractical as reasonably to

be considered impossible under the circumstances, and subject to those requirements, includes, but is not limited to, war, riots, civil disorder, earthquake, fire, explosion, storm, flood or other adverse weather conditions, strikes, lockouts or other industrial action confiscation or any other action by Government agencies.

17.2. Force Majeure shall not include (i) any event which is caused by the negligence or intentional action of a Party or such Party's Experts, Sub-consultants or agents or employees, nor (ii) any event which a diligent Party could reasonably have been expected to both take into account at the time of the conclusion of this Contract, and avoid or overcome in the carrying out of its obligations hereunder.

17.3. Force Majeure shall not include insufficiency of funds or failure to make any payment required hereunder.

b. No Breach of Contract

17.4. The failure of a Party to fulfill any of its obligations hereunder shall not be considered to be a breach of, or default under, this Contract insofar as such inability arises from an event of Force Majeure, provided that the Party affected by such an event has taken all reasonable precautions, due care and reasonable alternative measures, all with the objective of carrying out the terms and conditions of this Contract.

c. Measures to be Taken

17.5. A Party affected by an event of Force Majeure shall continue to perform its obligations under the Contract as far as is reasonably practical, and shall take all reasonable measures to minimize the consequences of any event of Force Majeure.

17.6. A Party affected by an event of Force Majeure shall notify the other Party of such event as soon as possible, and in any case not later than fourteen (14) calendar days following the occurrence of such event, providing evidence of the nature and cause of such event, and shall similarly give written notice of the restoration of normal conditions as soon as possible.

17.7. Any period within which a Party shall, pursuant to this Contract, complete any action or task, shall be extended for a period equal to the time during which such Party was unable to perform such action as a result of Force Majeure.

17.8. During the period of their inability to perform the Services as a result of an event of Force Majeure, the Consultant, upon instructions by the Client, shall either:

(a) demobilize, in which case the Consultant shall be reimbursed for additional costs they reasonably and

necessarily incurred, and, if required by the Client, in reactivating the Services; or

(b) continue with the Services to the extent reasonably possible, in which case the Consultant shall continue to be paid under the terms of this Contract and be reimbursed for additional costs reasonably and necessarily incurred.

17.9. In the case of disagreement between the Parties as to the existence or extent of Force Majeure, the matter shall be settled according to Clauses GCC 48 & 49.

18. **Suspension**

18.1. The Client may, by written notice of suspension to the Consultant, suspend all payments to the Consultant hereunder if the Consultant fails to perform any of its obligations under this Contract, including the carrying out of the Services, provided that such notice of suspension (i) shall specify the nature of the failure, and (ii) shall request the Consultant to remedy such failure within a period not exceeding thirty (30) calendar days after receipt by the Consultant of such notice of suspension.

19. **Termination**

19. 1 This Contract may be terminated by either Party as per provisions set up below:

a. By the Client

19.1.1 The Client may terminate this Contract in case of the occurrence of any of the events specified in paragraphs (a) through (f) of this Clause. In such an occurrence the Client shall give at least thirty (30) calendar days' written notice of termination to the Consultant in case of the events referred to in (a) through (d); at least sixty (60) calendar days' written notice in case of the event referred to in (e); and at least five (5) calendar days' written notice in case of the event referred to in (f):

(a) If the Consultant fails to remedy a failure in the performance of its obligations hereunder, as specified in a notice of suspension pursuant to Clause GCC 18;

(b) If the Consultant becomes (or, if the Consultant consists of more than one entity, if any of its members becomes) insolvent or bankrupt or enter into any agreements with their creditors for relief of debt or take advantage of any law for the benefit of debtors or go into liquidation or receivership whether compulsory or voluntary;

(c) If the Consultant fails to comply with any final decision reached as a result of arbitration proceedings pursuant to Clause GCC 49.1;

(d) If, as the result of Force Majeure, the Consultant is unable to perform a material portion of the Services for a period of not less than sixty (60) calendar days;

(e) If the Client, in its sole discretion and for any reason whatsoever, decides to terminate this Contract;

(f) If the Consultant fails to confirm availability of Key Experts as required in Clause GCC 13.

19.1.2 Furthermore, if the Client determines that the Consultant has engaged in corrupt, fraudulent, collusive, coercive or obstructive practices, in competing for or in executing the Contract, then the Client may, after giving fourteen (14) calendar days written notice to the Consultant, terminate the Consultant's employment under the Contract.

b. By the Consultant

19.1.3 The Consultant may terminate this Contract, by not less than thirty (30) calendar days' written notice to the Client, in case of the occurrence of any of the events specified in paragraphs (a) through (d) of this Clause.

(a) If the Client fails to pay any money due to the Consultant pursuant to this Contract and not subject to dispute pursuant to Clauses GCC 49.1 within forty-five (45) calendar days after receiving written notice from the Consultant that such payment is overdue.

(b) If, as the result of Force Majeure, the Consultant is unable to perform a material portion of the Services for a period of not less than sixty (60) calendar days.

(c) If the Client fails to comply with any final decision reached as a result of arbitration pursuant to Clause GCC 49.1.

(d) If the Client is in material breach of its obligations pursuant to this Contract and has not remedied the same within forty-five (45) days (or such longer period as the Consultant may have subsequently approved in writing) following the receipt by the Client of the Consultant's notice specifying such breach.

c. Cessation of Rights and Obligations

19.1.4 Upon termination of this Contract pursuant to Clauses GCC 12 or GCC 19 hereof, or upon expiration of this Contract pursuant to Clause GCC 14, all rights and obligations of the Parties hereunder shall cease, except (i) such rights and obligations as may have accrued on the date of termination or expiration, (ii) the obligation of confidentiality set forth in Clause GCC 22, (iii) the Consultant's obligation to permit

inspection, copying and auditing of their accounts and records set forth in Clause GCC 25, and (iv) any right which a Party may have under the Applicable Law.

d. Cessation of Services

19.1.5 Upon termination of this Contract by notice of either Party to the other pursuant to Clauses GCC 19a or GCC 19b, the Consultant shall, immediately upon dispatch or receipt of such notice, take all necessary steps to bring the Services to a close in a prompt and orderly manner and shall make every reasonable effort to keep expenditures for this purpose to a minimum. With respect to documents prepared by the Consultant and equipment and materials furnished by the Client, the Consultant shall proceed as provided, respectively, by Clauses GCC 27 or GCC 28.

e. Payment upon Termination

19.1.6 Upon termination of this Contract, the Client shall make the following payments to the Consultant:

(a) remuneration for Services satisfactorily performed prior to the effective date of termination, and reimbursable expenditures for expenditures actually incurred prior to the effective date of termination; and pursuant to Clause 42;

(b) in the case of termination pursuant to paragraphs (d) and (e) of Clause GCC 19.1.1, reimbursement of any reasonable cost incidental to the prompt and orderly termination of this Contract, including the cost of the return travel of the Experts.

C. OBLIGATIONS OF THE CONSULTANT

20. General

a. Standard of Performance

20.1 The Consultant shall perform the Services and carry out the Services with all due diligence, efficiency and economy, in accordance with generally accepted professional standards and practices, and shall observe sound management practices, and employ appropriate technology and safe and effective equipment, machinery, materials and methods. The Consultant shall always act, in respect of any matter relating to this Contract or to the Services, as a faithful adviser to the Client, and shall at all times support and safeguard the Client's legitimate interests in any dealings with the third parties.

20.2 The Consultant shall employ and provide such qualified and experienced Experts and Sub-consultants as are required to carry out the Services.

20.3 The Consultant may subcontract part of the Services to an extent and with such Key Experts and Sub-consultants as may be approved in advance by the Client. Notwithstanding such approval, the Consultant shall retain full responsibility for the Services.

b. Law Applicable to Services

20.4 The Consultant shall perform the Services in accordance with the Contract and the Applicable Law and shall take all practicable steps to ensure that any of its Experts and Sub-consultants, comply with the Applicable Law.

20.5 Throughout the execution of the Contract, the Consultant shall comply with the import of goods and services prohibitions in the Client's country when

(a) as a matter of law or official regulations, the Borrower's country prohibits commercial relations with that country; or

(b) by an act of compliance with a decision of the United Nations Security Council taken under Chapter VII of the Charter of the United Nations, the Borrower's Country prohibits any import of goods from that country or any payments to any country, person, or entity in that country.

20.6 The Client shall notify the Consultant in writing of relevant local customs, and the Consultant shall, after such notification, respect such customs.

21. **Conflict of Interests**

21.1 The Consultant shall hold the Client's interests paramount, without any consideration for future work, and strictly avoid conflict with other assignments or their own corporate interests.

a. Consultant Not to Benefit from Commissions, Discounts, etc.

21.1.1 The payment of the Consultant pursuant to GCC F (Clauses GCC 41 through 46) shall constitute the Consultant's only payment in connection with this Contract and, subject to Clause GCC 21.1.3, the Consultant shall not accept for its own benefit any trade commission, discount or similar payment in connection with activities pursuant to this Contract or in the discharge of its obligations hereunder, and the Consultant shall use its best efforts to ensure that any Sub-consultants, as well as the Experts and agents of either of them, similarly shall not receive any such additional payment.

21.1.2 Furthermore, if the Consultant, as part of the Services, has the responsibility of advising the Client on the procurement of goods, works or services, the Consultant shall comply with the Bank's Applicable Guidelines, and shall at all times exercise such responsibility in the best interest of the Client. Any discounts or

commissions obtained by the Consultant in the exercise of such procurement responsibility shall be for the account of the Client.

b. Consultant and Affiliates Not to Engage in Certain Activities

21.1.3 The Consultant agrees that, during the term of this Contract and after its termination, the Consultant and any entity affiliated with the Consultant, as well as any Sub-consultants and any entity affiliated with such Sub-consultants, shall be disqualified from providing goods, works or non-consulting services resulting from or directly related to the Consultant's Services for the preparation or implementation of the project, unless otherwise indicated in the **SCC**.

c. Prohibition of Conflicting Activities

21.1.4 The Consultant shall not engage, and shall cause its Experts as well as its Sub-consultants not to engage, either directly or indirectly, in any business or professional activities that would conflict with the activities assigned to them under this Contract.

d. Strict Duty to Disclose Conflicting Activities

21.1.5 The Consultant has an obligation and shall ensure that its Experts and Sub-consultants shall have an obligation to disclose any situation of actual or potential conflict that impacts their capacity to serve the best interest of their Client, or that may reasonably be perceived as having this effect. Failure to disclose said situations may lead to the disqualification of the Consultant or the termination of its Contract.

22. Confidentiality

22.1 Except with the prior written consent of the Client, the Consultant and the Experts shall not at any time communicate to any person or entity any confidential information acquired in the course of the Services, nor shall the Consultant and the Experts make public the recommendations formulated in the course of, or as a result of, the Services.

23. Liability of the Consultant

23.1 Subject to additional provisions, if any, set forth in the **SCC**, the Consultant's liability under this Contract shall be as determined under the Applicable Law.

24. Insurance to be Taken out by the Consultant

24.1 The Consultant (i) shall take out and maintain, and shall cause any Sub-consultants to take out and maintain, at its (or the Sub-consultants', as the case may be) own cost but on terms and conditions approved by the Client, insurance against the risks, and for the coverage specified in the **SCC,** and (ii) at the Client's request, shall provide evidence to the Client showing that such insurance has been taken out and maintained and that the current premiums therefore have been paid. The Consultant shall ensure that such insurance is in place prior to commencing the Services as stated in Clause GCC 13.

25. Accounting, Inspection and Auditing

25.1 The Consultant shall keep, and shall make all reasonable efforts to cause its Sub-consultants to keep, accurate and systematic accounts and records in respect of the Services in such form and detail as will clearly identify relevant time changes and costs.

25.2. The Consultant shall permit and shall cause its Sub-consultants to permit, the Bank and/or persons appointed by the Bank to inspect the Site and/or all accounts and records relating to the performance of the Contract and the submission of the Proposal to provide the Services, and to have such accounts and records audited by auditors appointed by the Bank if requested by the Bank. The Consultant's attention is drawn to Clause GCC 10 which provides, inter alia, that acts intended to materially impede the exercise of the Bank's inspection and audit rights provided for under this Clause GCC25.2 constitute a prohibited practice subject to contract termination (as well as to a determination of ineligibility under the Bank's prevailing sanctions procedures.)

26. Reporting Obligations

26.1 The Consultant shall submit to the Client the reports and documents specified in **Appendix A**, in the form, in the numbers and within the time periods set forth in the said Appendix.

27. Proprietary Rights of the Client in Reports and Records

27.1 Unless otherwise indicated in the **SCC**, all reports and relevant data and information such as maps, diagrams, plans, databases, other documents and software, supporting records or material compiled or prepared by the Consultant for the Client in the course of the Services shall be confidential and become and remain the absolute property of the Client. The Consultant shall, not later than upon termination or expiration of this Contract, deliver all such documents to the Client, together with a detailed inventory thereof. The Consultant may retain a copy of such documents, data and/or software but shall not use the same for purposes unrelated to this Contract without prior written approval of the Client.

27.2 If license agreements are necessary or appropriate between the Consultant and third parties for purposes of development of the plans, drawings, specifications, designs, databases, other documents and software, the Consultant shall obtain the Client's prior written approval to such agreements, and the Client shall be entitled at its discretion to require recovering the expenses related to the development of the program(s) concerned. Other restrictions about the future use of these documents and software, if any, shall be specified in the **SCC**.

28. Equipment, Vehicles and Materials

28.1 Equipment, vehicles and materials made available to the Consultant by the Client, or purchased by the Consultant wholly or partly with funds provided by the Client, shall be the property of the Client and shall be marked accordingly. Upon termination or expiration of this Contract, the Consultant shall make available to the

Client an inventory of such equipment, vehicles and materials and shall dispose of such equipment, vehicles and materials in accordance with the Client's instructions. While in possession of such equipment, vehicles and materials, the Consultant, unless otherwise instructed by the Client in writing, shall insure them at the expense of the Client in an amount equal to their full replacement value.

28.2 Any equipment or materials brought by the Consultant or its Experts into the Client's country for the use either for the project or personal use shall remain the property of the Consultant or the Experts concerned, as applicable.

D. CONSULTANT'S EXPERTS AND SUB-CONSULTANTS

29. Description of Key Experts

29.1 The title, agreed job description, minimum qualification and time-input estimates to carry out the Services of each of the Consultant's Key Experts are described in **Appendix B.**

29.2 If required to comply with the provisions of Clause GCC 20a, adjustments with respect to the estimated time-input of Key Experts set forth in **Appendix B** may be made by the Consultant by a written notice to the Client, provided (i) that such adjustments shall not alter the original time-input estimates for any individual by more than 10% or one week, whichever is larger; and (ii) that the aggregate of such adjustments shall not cause payments under this Contract to exceed the ceilings set forth in Clause GCC 41.2.

29.3 If additional work is required beyond the scope of the Services specified in **Appendix A**, the estimated time-input for the Key Experts may be increased by agreement in writing between the Client and the Consultant. In case where payments under this Contract exceed the ceilings set forth in Clause GCC 41.1, the Parties shall sign a Contract amendment.

30. Replacement of Key Experts

30.1 Except as the Client may otherwise agree in writing, no changes shall be made in the Key Experts.

30.2 Notwithstanding the above, the substitution of Key Experts during Contract execution may be considered only based on the Consultant's written request and due to circumstances outside the reasonable control of the Consultant, including but not limited to death or medical incapacity. In such case, the Consultant shall forthwith provide as a replacement, a person of equivalent or better qualifications and experience, and at the same rate of remuneration.

31. Approval of Additional Key Experts

31.1 If during execution of the Contract, additional Key Experts are required to carry out the Services, the Consultant shall submit to the Client for review and approval a copy of their Curricula Vitae (CVs). If the Client does not object in writing (stating the reasons for the objection) within twenty two (22) days from the date of receipt of such CVs, such additional Key Experts shall be deemed to have been approved by the Client.

The rate of remuneration payable to such new additional Key Experts shall be based on the rates for other Key Experts position which require similar qualifications and experience.

32. Removal of Experts or Sub-consultants

32.1 If the Client finds that any of the Experts or Sub-consultant has committed serious misconduct or has been charged with having committed a criminal action, or shall the Client determine that Consultant's Expert of Sub-consultant have engaged in corrupt, fraudulent, collusive, coercive or obstructive practice while performing the Services, the Consultant shall, at the Client's written request, provide a replacement.

32.2 In the event that any of Key Experts, Non-Key Experts or Sub-consultants is found by the Client to be incompetent or incapable in discharging assigned duties, the Client, specifying the grounds therefore, may request the Consultant to provide a replacement.

32.3 Any replacement of the removed Experts or Sub-consultants shall possess better qualifications and experience and shall be acceptable to the Client.

33. Replacement/ Removal of Experts – Impact on Payments

33.1 Except as the Client may otherwise agree, (i) the Consultant shall bear all additional travel and other costs arising out of or incidental to any removal and/or replacement, and (ii) the remuneration to be paid for any of the Experts provided as a replacement shall not exceed the remuneration which would have been payable to the Experts replaced or removed.

34. Working Hours, Overtime, Leave, etc.

34.1 Working hours and holidays for Experts are set forth in **Appendix B**. To account for travel time to/from the Client's country, experts carrying out Services inside the Client's country shall be deemed to have commenced or finished work in respect of the Services such number of days before their arrival in, or after their departure from, the Client's country as is specified in **Appendix B**.

34.2 The Experts shall not be entitled to be paid for overtime nor to take paid sick leave or vacation leave except as specified in **Appendix B**, and the Consultant's remuneration shall be deemed to cover these items.

34.3 Any taking of leave by Key Experts shall be subject to the prior approval by the Consultant who shall ensure that absence for leave purposes will not delay the progress and or impact adequate supervision of the Services.

E. OBLIGATIONS OF THE CLIENT

35. **Assistance and Exemptions**

35.1 Unless otherwise specified in the **SCC**, the Client shall use its best efforts to:

(a) Assist the Consultant with obtaining work permits and such other documents as shall be necessary to enable the Consultant to perform the Services.

(b) Assist the Consultant with promptly obtaining, for the Experts and, if appropriate, their eligible dependents, all necessary entry and exit visas, residence permits, exchange permits and any other documents required for their stay in the Client's country while carrying out the Services under the Contract.

(c) Facilitate prompt clearance through customs of any property required for the Services and of the personal effects of the Experts and their eligible dependents.

(c) Issue to officials, agents and representatives of the Government all such instructions and information as may be necessary or appropriate for the prompt and effective implementation of the Services.

(d) Assist the Consultant and the Experts and any Sub-consultants employed by the Consultant for the Services with obtaining exemption from any requirement to register or obtain any permit to practice their profession or to establish themselves either individually or as a corporate entity in the Client's country according to the applicable law in the Client's country.

(e) Assist the Consultant, any Sub-consultants and the Experts of either of them with obtaining the privilege, pursuant to the applicable law in the Client's country, of bringing into the Client's country reasonable amounts of foreign currency for the purposes of the Services or for the personal use of the Experts and of withdrawing any such amounts as may be earned therein by the Experts in the execution of the Services.

(f) Provide to the Consultant any such other assistance as may be specified in the **SCC**.

36. Access to Project Site

36.1 The Client warrants that the Consultant shall have, free of charge, unimpeded access to the project site in respect of which access is required for the performance of the Services. The Client will be responsible for any damage to the project site or any property thereon resulting from such access and will indemnify the Consultant and each of the experts in respect of liability for any such damage, unless such damage is caused by the willful default or negligence of the Consultant or any Sub-consultants or the Experts of either of them.

37. **Change in the Applicable Law Related to Taxes and Duties**

37.1 If, after the date of this Contract, there is any change in the applicable law in the Client's country with respect to taxes and duties which increases or decreases the cost incurred by the Consultant in performing the Services, then the remuneration and reimbursable expenses otherwise payable to the Consultant under this Contract shall be increased or decreased accordingly by agreement between the Parties hereto, and corresponding adjustments shall be made to the ceiling amounts specified in Clause GCC 41.1

38. **Services, Facilities and Property of the Client**

38.1 The Client shall make available to the Consultant and the Experts, for the purposes of the Services and free of any charge, the services, facilities and property described in the Terms of Reference (**Appendix A)** at the times and in the manner specified in said **Appendix A.**

38.2 In case that such services, facilities and property shall not be made available to the Consultant as and when specified in **Appendix A**, the Parties shall agree on (i) any time extension that it may be appropriate to grant to the Consultant for the performance of the Services, (ii) the manner in which the Consultant shall procure any such services, facilities and property from other sources, and (iii) the additional payments, if any, to be made to the Consultant as a result thereof pursuant to Clause GCC 41.3.

39. **Counterpart Personnel**

39.1 The Client shall make available to the Consultant free of charge such professional and support counterpart personnel, to be nominated by the Client with the Consultant's advice, if specified in **Appendix A**.

39.2 If counterpart personnel are not provided by the Client to the Consultant as and when specified in **Appendix A**, the Client and the Consultant shall agree on (i) how the affected part of the Services shall be carried out, and (ii) the additional payments, if any, to be made by the Client to the Consultant as a result thereof pursuant to Clause GCC 41.3.

39.3 Professional and support counterpart personnel, excluding Client's liaison personnel, shall work under the exclusive direction of the Consultant. If any member of the counterpart personnel fails to

perform adequately any work assigned to such member by the Consultant that is consistent with the position occupied by such member, the Consultant may request the replacement of such member, and the Client shall not unreasonably refuse to act upon such request.

40. **Payment Obligation**

40.1 In consideration of the Services performed by the Consultant under this Contract, the Client shall make such payments to the Consultant and in such manner as is provided by GCC F below.

F. PAYMENTS TO THE CONSULTANT

41. **Ceiling Amount**

41.1 An estimate of the cost of the Services is set forth in **Appendix C** (Remuneration) and **Appendix D** (Reimbursable expenses).

41.2 Payments under this Contract shall not exceed the ceilings in foreign currency and in local currency specified in the **SCC**.

41.3 For any payments in excess of the ceilings specified in GCC41.2, an amendment to the Contract shall be signed by the Parties referring to the provision of this Contract that evokes such amendment.

42. Remuneration and Reimbursable Expenses

42.1 The Client shall pay to the Consultant (i) remuneration that shall be determined on the basis of time actually spent by each Expert in the performance of the Services after the date of commencing of Services or such other date as the Parties shall agree in writing; and (ii) reimbursable expenses that are actually and reasonably incurred by the Consultant in the performance of the Services.

42.2 All payments shall be at the rates set forth in **Appendix C** and **Appendix D**.

42.3 Unless the **SCC** provides for the price adjustment of the remuneration rates, said remuneration shall be fixed for the duration of the Contract.

42.4 The remuneration rates shall cover: (i) such salaries and allowances as the Consultant shall have agreed to pay to the Experts as well as factors for social charges and overheads (bonuses or other means of profit-sharing shall not be allowed as an element of overheads), (ii) the cost of backstopping by home office staff not included in the Experts' list in **Appendix B**, (iii) the Consultant's profit, and (iv) any other items as specified in the **SCC**.

42.5 Any rates specified for Experts not yet appointed shall be provisional and shall be subject to revision, with the written approval

of the Client, once the applicable remuneration rates and allowances are known.

43. **Taxes and Duties**

43.1 The Consultant, Sub-consultants and Experts are responsible for meeting any and all tax liabilities arising out of the Contract unless it is stated otherwise in the **SCC**.

43.2 As an exception to the above and as stated in the **SCC**, all local identifiable indirect taxes (itemized and finalized at Contract negotiations) are reimbursed to the Consultant or are paid by the Client on behalf of the Consultant.

44. **Currency of Payment**

44.1 Any payment under this Contract shall be made in the currency(ies) specified in the **SCC.**

45. **Mode of Billing and Payment**

45.1 Billings and payments in respect of the Services shall be made as follows:

(a) *Advance payment*. Within the number of days after the Effective Date, the Client shall pay to the Consultant an advance payment as specified in the **SCC**. Unless otherwise indicated in the **SCC**, an advance payment shall be made against an advance payment bank guarantee acceptable to the Client in an amount (or amounts) and in a currency (or currencies) specified in the **SCC**. Such guarantee (i) is to remain effective until the advance payment has been fully set off, and (ii) is to be in the form set forth in **Appendix E**, or in such other form as the Client shall have approved in writing. The advance payments will be set off by the Client in equal installments against the statements for the number of months of the Services specified in the **SCC** until said advance payments have been fully set off.

(b) *The Itemized Invoices.* As soon as practicable and not later than fifteen (15) days after the end of each calendar month during the period of the Services, or after the end of each time interval otherwise indicated in the **SCC**, the Consultant shall submit to the Client, in duplicate, itemized invoices, accompanied by the receipts or other appropriate supporting documents, of the amounts payable pursuant to Clauses GCC 44 and GCC 45 for such interval, or any other period indicated in the **SCC**. Separate invoices shall be submitted for expenses incurred in foreign currency and in local currency. Each invoice shall show remuneration and reimbursable expenses separately.

(c) The Client shall pay the Consultant's invoices within sixty (60) days after the receipt by the Client of such itemized invoices with supporting documents. Only such portion of an invoice that is not satisfactorily supported may be withheld from payment.

Should any discrepancy be found to exist between actual payment and costs authorized to be incurred by the Consultant, the Client may add or subtract the difference from any subsequent payments.

(d) *The Final Payment* .The final payment under this Clause shall be made only after the final report and a final invoice, identified as such, shall have been submitted by the Consultant and approved as satisfactory by the Client. The Services shall be deemed completed and finally accepted by the Client and the final report and final invoice shall be deemed approved by the Client as satisfactory ninety (90) calendar days after receipt of the final report and final invoice by the Client unless the Client, within such ninety (90) calendar day period, gives written notice to the Consultant specifying in detail deficiencies in the Services, the final report or final invoice. The Consultant shall thereupon promptly make any necessary corrections, and thereafter the foregoing process shall be repeated. Any amount that the Client has paid or has caused to be paid in accordance with this Clause in excess of the amounts payable in accordance with the provisions of this Contract shall be reimbursed by the Consultant to the Client within thirty (30) days after receipt by the Consultant of notice thereof. Any such claim by the Client for reimbursement must be made within twelve (12) calendar months after receipt by the Client of a final report and a final invoice approved by the Client in accordance with the above.

(e) All payments under this Contract shall be made to the accounts of the Consultant specified in the **SCC**.

(f) With the exception of the final payment under (d) above, payments do not constitute acceptance of the Services nor relieve the Consultant of any obligations hereunder.

46. Interest on Delayed Payments

46.1 If the Client had delayed payments beyond fifteen (15) days after the due date stated in Clause GCC 45.1 (c), interest shall be paid to the Consultant on any amount due by, not paid on, such due date for each day of delay at the annual rate stated in the **SCC.**

G. FAIRNESS AND GOOD FAITH

47. Good Faith

47.1 The Parties undertake to act in good faith with respect to each other's rights under this Contract and to adopt all reasonable measures to ensure the realization of the objectives of this Contract.

H. SETTLEMENT OF DISPUTES

48. Amicable Settlement

48.1 The Parties shall seek to resolve any dispute amicably by mutual consultation.

48.2 If either Party objects to any action or inaction of the other Party, the objecting Party may file a written Notice of Dispute to the other Party providing in detail the basis of the dispute. The Party receiving the Notice of Dispute will consider it and respond in writing within fourteen (14) days after receipt. If that Party fails to respond within fourteen (14) days, or the dispute cannot be amicably settled within fourteen (14) days following the response of that Party, Clause GCC 49.1 shall apply.

49. Dispute Resolution

49.1 Any dispute between the Parties arising under or related to this Contract that cannot be settled amicably may be referred to by either Party to the adjudication/arbitration in accordance with the provisions specified in the **SCC**.

II. General Conditions

Attachment 1: Bank's Policy – Corrupt and Fraudulent Practices

Guidelines for Selection and Employment of Consultants under IBRD Loans and IDA Credits & Grants by World Bank Borrowers, dated January 2011:

"**Fraud and Corruption**

1.23 It is the Bank's policy to require that Borrowers (including beneficiaries of Bank loans), consultants, and their agents (whether declared or not), sub-contractors, sub-consultants, service providers, or suppliers, and any personnel thereof, observe the highest standard of ethics during the selection and execution of Bank-financed contracts [footnote: In this context, any action taken by a consultant or any of its personnel, or its agents, or its sub-consultants, sub-contractors, services providers, suppliers, and/or their employees, to influence the selection process or contract execution for undue advantage is improper.]. In pursuance of this policy, the Bank:

(a) defines, for the purposes of this provision, the terms set forth below as follows:

(i) "corrupt practice" is the offering, giving, receiving, or soliciting, directly or indirectly, of anything of value to influence improperly the actions of another party[1];

(ii) "fraudulent practice" is any act or omission, including misrepresentation, that knowingly or recklessly misleads, or attempts to mislead, a party to obtain financial or other benefit or to avoid an obligation[2];

(iii) "collusive practices" is an arrangement between two or more parties designed to achieve an improper purpose, including to influence improperly the actions of another party[3];

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[1] *For the purpose of this sub-paragraph, "another party" refers to a public official acting in relation to the selection process or contract execution. In this context "public official" includes World Bank staff and employees of other organizations taking or reviewing selection decisions.*

[2] *For the purpose of this sub-paragraph, "party" refers to a public official; the terms "benefit" and "obligation" relate to the selection process or contract execution; and the "act or omission" is intended to influence the selection process or contract execution.*

[3] *For the purpose of this sub-paragraph, "parties" refers to participants in the procurement or selection process (including public officials) attempting either themselves, or through another person or entity not participating in the procurement or selection process, to simulate competition or to establish prices at artificial, non-competitive levels, or are privy to each other's bid prices or other conditions.*

(iv) "coercive practices" is impairing or harming, or threatening to impair or harm, directly or indirectly, any party or the property of the party to influence improperly the actions of a party[4];

(v) "obstructive practice" is

(aa) deliberately destroying, falsifying, altering, or concealing of evidence material to the investigation or making false statements to investigators in order to materially impede a Bank investigation into allegations of a corrupt, fraudulent, coercive, or collusive practice; and/or threatening, harassing, or intimidating any party to prevent it from disclosing its knowledge of matters relevant to the investigation or from pursuing the investigation, or

(bb) acts intended to materially impede the exercise of the Bank's inspection and audit rights;

(b) will reject a proposal for award if it determines that the consultant recommended for award or any of its personnel, or its agents, or its sub-consultants, sub-contractors, services providers, suppliers, and/or their employees, has, directly or indirectly, engaged in corrupt, fraudulent, collusive, coercive, or obstructive practices in competing for the contract in question;

(c) will declare misprocurement and cancel the portion of the Loan allocated to a contract if it determines at any time that representatives of the Borrower or of a recipient of any part of the proceeds of the Loan were engaged in corrupt, fraudulent, collusive, coercive, or obstructive practices during the selection process or the implementation of the contract in question, without the Borrower having taken timely and appropriate action satisfactory to the Bank to address such practices when they occur, including by failing to inform the Bank in a timely manner they knew of the practices;

(d) will sanction a firm or an individual at any time, in accordance with prevailing Bank's sanctions procedures[5], including by publicly declaring such firm or an ineligible, either indefinitely or for a stated period of time: (i) to be awarded a Bank-financed contract, and (ii) to be a nominated[6] sub-consultant, supplier, or service provider of an otherwise eligible firm being awarded a Bank-financed contract.

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[4] For the purpose of this sub-paragraph, "party" refers to a participant in the selection process or contract execution.

[5] A firm or an individual may be declared ineligible to be awarded a Bank-financed contract upon (i) completion of the Bank's sanctions proceedings as per its sanctions procedures, including inter alia: cross-debarment as agreed with other International Financial Institutions, including Multilateral Development Banks, and through the application of the World Bank Group corporate administrative procurement sanctions procedures for fraud and corruption; and (ii) as a result of temporary suspension or early temporary suspension in connection with an ongoing sanctions proceedings. See footnote 12 and paragraph 8 of Appendix 1 of these Guidelines.

[6] A nominated sub-consultant, supplier, or service provider is one which has been either (i) included by the consultant in its proposal because it brings specific and critical experience and know-how that are accounted for in the technical evaluation of the consultant's proposal for the particular services; or (ii) appointed by the Borrower.

III. Special Conditions of Contract

[Notes in brackets are for guidance purposes only and should be deleted in the final text of the signed contract]

Number of GC Clause	Amendments of, and Supplements to, Clauses in the General Conditions of Contract
1.1(b) and 3.1	**The Contract shall be construed in accordance with the law of:** Malawi
4.1	**The language is:** English
6.1 and 6.2	**The addresses are:** Client : The Project Coordinator (Attn: The Procurement Specialist), Malawi Floods Emergency Recovery Project, Physical Address: Lilongwe Old Town, Off Kamuzu Procession Road, Opposite Lilongwe Town Hall (at the Roundabout). Postal Address: Private Bag A192 Lilongwe, Malawi. Phone: +265 01 753 163; Email: goli.mwanza@mferp.org / dickxie.kampani@mferp.org Facsimile: +265 01 750 388 Consultant : Korea Rural Community Corporation in joint venture with Dasan Consultants Co., Ltd. 20, Gerin-ro, Naju-si, Jeollanam-do, Republic of Korea Attention : Team Leader of Consultant Facsimile : +82 61 338 6449 E-mail (where permitted) : krcoverseas@ekr.or.kr
8.1	**The Lead Member on behalf of the JV is** Korea Rural Community Corporation
9.1	**The Authorized Representatives are:** **For the Client:** Mr. Dickxie Kampani(Project Coordinator) **For the Consultant:** Korea Rural Community Corporation in joint venture with Dasan Consultants Co., Ltd. Mr. Lee, Sangbeom / Team Leader of Consultant

11.1	**The effectiveness conditions are the following**: Satisfactory completion of Design contract (Part 1)
12.1	**Termination of Contract for Failure to Become Effective:** **The time period shall be:** 30(thirty) days
13.1	**Commencement of Services:** **The number of days shall be:** 14 days Confirmation of Key Experts' availability to start the Assignment shall be submitted to the Client in writing as a written statement signed by each Key Expert.
14.1	**Expiration of Contract:** **The time period shall be** : 6(six) calendar months
21 b.	**The Client reserves the right to determine on a case-by-case basis whether the Consultant should be disqualified from providing goods, works or non-consulting services due to a conflict of a nature described in Clause GCC 21.1.3** Yes

23.1	**Limitation of the Consultant's Liability towards the Client:** **(**a) Except in the case of gross negligence or willful misconduct on the part of the Consultant or on the part of any person or a firm acting on behalf of the Consultant in carrying out the Services, the Consultant, with respect to damage caused by the Consultant to the Client's property, shall not be liable to the Client: (i) for any indirect or consequential loss or damage; and (ii)for any direct loss or damage that exceeds one times the total value of the Contract; **(b) This limitation of liability shall not** (i) affect the Consultant's liability, if any, for damage to Third Parties caused by the Consultant or any person or firm acting on behalf of the Consultant in carrying out the Services; (ii) be construed as providing the Consultant with any limitation or exclusion from liability which is prohibited by the applicable law in the Client's country
24.1	**The insurance coverage against the risks shall be as follows:** (a)Professional liability insurance, with a minimum coverage equivalent to the professional fees of the contract amount (b)Third Party motor vehicle liability insurance in respect of motor vehicles operated in the Client's country by the Consultant or its Experts or Sub-consultants, with a minimum coverage that is *in accordance with the applicable law in the Client's country.* (c)Third Party liability insurance, with a minimum coverage which is in accordance with the applicable law in the Client's country (d) employer's liability and workers' compensation insurance in respect of the experts and Sub-consultants in accordance with the relevant provisions of the applicable law in the Client's country, as well as, with respect to such Experts, any such life, health, accident, travel or other insurance as may be appropriate; and (e) insurance against loss of or damage to (i) equipment purchased in whole or in part with funds provided under this Contract, (ii) the

	Consultant's property used in the performance of the Services, and (iii) any documents prepared by the Consultant in the performance of the Service, as well as, with respect to such Experts, any such life, health, accident, travel or other insurance as may be appropriate; and (e) insurance against loss of or damage to (i) equipment purchased in whole or in part with funds provided under this Contract, (ii) the Consultant's property used in the performance of the Services, and (iii) any documents prepared by the Consultant in the performance of the Services.
27.1	~~N/A~~
27.2	**The** Consultant **shall not :**use these documents and software for purposes unrelated to this Contract without the prior written approval of the Client.
41.2	The ceiling in foreign currency or currencies is: **USD482,270.00** exclusive of local indirect taxes. The ceiling in local currency is: Not applicable Taxes will be deducted and paid to the tax authorities on behalf of the Consultants. Note that there should be no tax on reimbursable expenses The amount of such taxes is: **USD58,905.00**
42.3	**Price adjustment on the remuneration:** does not apply

43.1 and 43.2	"the Client shall reimburse the Consultant, the Sub-consultants and the Experts*"]*any indirect taxes, duties, fees, levies and other impositions imposed, under the applicable law in the Client's country, on the Consultant, the Sub-consultants and the Experts in respect of: (a)any payments whatsoever made to the Consultant, Sub-consultants and the Experts (other than nationals or permanent residents of the Client's country), in connection with the carrying out of the Services; (b)any equipment, materials and supplies brought into the Client's country by the Consultant or Sub-consultants for the purpose of carrying out the Services and which, after having been brought into such territories, will be subsequently withdrawn by them; (c) any equipment imported for the purpose of carrying out the Services and paid for out of funds provided by the Client and which is treated as property of the Client; (d)any property brought into the Client's country by the Consultant, any Sub-consultants or the Experts (other than nationals or permanent residents of the Client's country), or the eligible dependents of such experts for their personal use and which will subsequently be withdrawn by them upon their respective departure from the Client's country, provided that: (i) the Consultant, Sub-consultants and experts shall follow the usual customs procedures of the Client's country in importing property into the Client's country; and (ii) if the Consultant, Sub-consultants or Experts do not withdraw but dispose of any property in the Client's country upon which customs duties and taxes have been exempted, the Consultant, Sub-consultants or Experts, as the case may be, (a) shall bear such customs duties and taxes in conformity with the regulations of the Client's country, or (b) shall reimburse them to the Client if they were paid by the Client at the time the property in question was brought into the Client's country.
44.1	**The currency [currencies] of payment shall be the following:** *United states Dollars(US$)*
45.1(a)	The following provisions shall apply to the advance payment and the advance bank payment guarantee: (1) A 10(ten) percent advance payment in foreign currency shall be made within 14(fourteen) days after the Effective Date and

	submission of an invoice for the same. The advance payment will be set off by the Client in equal installments against the statements for the first 3(three) months of the Services until the advance payment has been fully set off.
45.1(b)	**The Consultant shall submit to the Client itemized statements at time intervals of :** every three months
45.1(e)	**The accounts are:** **for foreign currency:** **Bank**: Nonghyup Bank **Branch**: KRC-Branch **Account No.**: 573-01-000430 **Owner of Account**: Korea Rural Community Corporation **Swift Code**: NACFKRSEXXX **Address**: 20 Geurin-ro, Naju-si, Jeollanam-do, Republic of Korea for local currency: N/A
46.1	**The interest rate is**: The payment-delay period after which the Client shall pay interest to the Consultant shall be 30 days after the last date from when payment is due. The interest rate that shall be applied is the prevailing interest rate for commercial borrowing for each currency in which payments are to be made as issued by the central bank of the country of the particular currency.
49.	**Disputes shall be settled by arbitration in accordance with the following provisions:** 1. Selection of Arbitrators. Each dispute submitted by a Party to arbitration shall be heard by a sole arbitrator or an arbitration panel composed of three (3) arbitrators, in accordance with the following provisions: (a) Where the Parties agree that the dispute concerns a technical matter, they may agree to appoint a sole arbitrator or, failing agreement on the identity of such sole arbitrator within thirty (30) days after receipt by the other Party of the proposal of a name for such an appointment by the Party who initiated the proceedings, either Party may apply to The National Construction Industry of Malawi (NCIC) for a list of not fewer than five (5) nominees and, on receipt of such list, the Parties shall alternately strike names there from, and the last remaining nominee on the list shall be the sole arbitrator for the matter in dispute. If the last remaining nominee has not

	been determined in this manner within sixty (60) days of the date of the list, National Construction Industry of Malawi (NCIC) shall appoint, upon the request of either Party and from such list or otherwise, a sole arbitrator for the matter in dispute. (b)Where the Parties do not agree that the dispute concerns a technical matter, the Client and the Consultant shall each appoint one (1) arbitrator, and these two arbitrators shall jointly appoint a third arbitrator, who shall chair the arbitration panel. If the arbitrators named by the Parties do not succeed in appointing a third arbitrator within thirty (30) days after the latter of the two (2) arbitrators named by the Parties has been appointed, the third arbitrator shall, atthe request of either Party, be appointed by National Construction Industry of Malawi (NCIC) (c) If, in a dispute subject to paragraph (b) above, one Party fails to appoint its arbitrator within thirty (30) days after the other Party has appointed its arbitrator, the Party which has named an arbitrator may apply to the National Construction Industry of Malawi (NCIC) to appoint a sole arbitrator for the matter in dispute, and the arbitrator appointed pursuant to such application shall be the sole arbitrator for that dispute
	2. Rules of Procedure. Except as otherwise stated herein, arbitration proceedings shall be conducted in accordance with the rules of procedure for arbitration of the United Nations Commission on International Trade Law (UNCITRAL) as in force on the date of this Contract. 3. Substitute Arbitrators. If for any reason an arbitrator is unable to perform his/her function, a substitute shall be appointed in the same manner as the original arbitrator. 4. Nationality and Qualifications of Arbitrators. The sole arbitrator or the third arbitrator appointed pursuant to paragraphs 1(a) through 1(c) above shall be an internationally recognized legal or technical expert with extensive experience in relation to the matter in dispute and shall not be a national of the Consultant's home country For the purposes of this Clause, "home country" means any of: (a) the country of incorporation of the Consultant

	(b) the country in which the Consultant's or any of their members' or Parties principal place of business is located; or c) the country of nationality of a majority of the Consultant' shareholders; or 5. Miscellaneous: In any arbitration proceedings hereunder: (a) Proceedings shall, unless otherwise agreed by both parties, be held in : **Zambia** (b) the English language shall be the official language for all Purposes; and (c) the decision of sole arbitrator or majority of arbitrators (or of third arbitrator if there is no such majority) shall be final and binding and shall be enforceable in any court of competent jurisdiction, and the parties hereby waive any objection to or claims of immunity in respect of such enforcement.

IV. Appendices

APPENDIX A-TERMS OF REFERENCE.

APPENDIX A – TERMS OF REFERENCE

The Government of Malawi has secured a grant and Credit from the International Development Association (IDA) Crisis Response Window (CRW) to help support the implementation of key recovery interventions under the Malawi Flood Emergency Recovery Project (MFERP). The MFERP is an initiative by the Government of Malawi (GoM) with support from the World Bank to respond to the effects and losses that Malawi experienced as a result of heavy rains and subsequent floods that occurred during the 2014-2015 agricultural season.

The MFERP primarily focuses on the sustainable restoration of agricultural livelihoods, enhanced food security, resilient reconstruction of critical public infrastructure, restoration of services, and investments in longer-term risk reduction. The selection of interventions and the corresponding resource allocation under the project is based on the principle of maintaining "proportionality" with the impact and needs quantified under the Post Disaster Needs Assessment (PDNA). The PDNA provided a comprehensive impact and needs assessment across selected key sectors, cross-cutting guiding principles and a preliminary recovery strategy and a roadmap that prioritizes early, medium and long-term needs for each of the sectors. Therefore, the activities proposed under MFERP are based on a prioritization of the most critical needs identified by the PDNA, including the transport, agriculture and other public infrastructure sectors. The MFERP also intends to move the vulnerability-reduction agenda forward to help Malawi mitigate similar disasters in the future.

The project is packaged into four main components namely (1) Livelihoods Restoration and Food Security, (2) Infrastructure Rehabilitation and Reconstruction (3) Promoting Disaster Resilience and (4) Programme Management. Under the *Infrastructure Rehabilitation and Reconstruction component,* selected critical public infrastructure destroyed or damaged by the floods have been targeted. These include roads and bridges, irrigation infrastructure, flood protection bunds, water resources management and Water, Sanitation and Hygiene (WASH) infrastructure, Education and Health facilities.

The Water Resources Management sub-component is supporting all flood mitigation interventions, including: (a) river training works; *(b) river bank protection, afforestation of river banks and localized embankment repair works in critical flooding rivers; (c) creation and restoration of storm-water drainage; (d) restoration of riparian forests; and; (e) flood protection bunds around critical infrastructure.* These works are expected to help reduce the flood risk levels and vulnerability of communities.

Time-Based

These Terms of Reference are for the design and supervision of rehabilitation works for flood protection structures in 9 districts affected by the January, 2015 floods namely Nsanje, Chikwawa, Mulanje, Phalombe, Machinga, Ntcheu, Salima Rumphi and Karonga (Refer to figure 1).

Time-Based

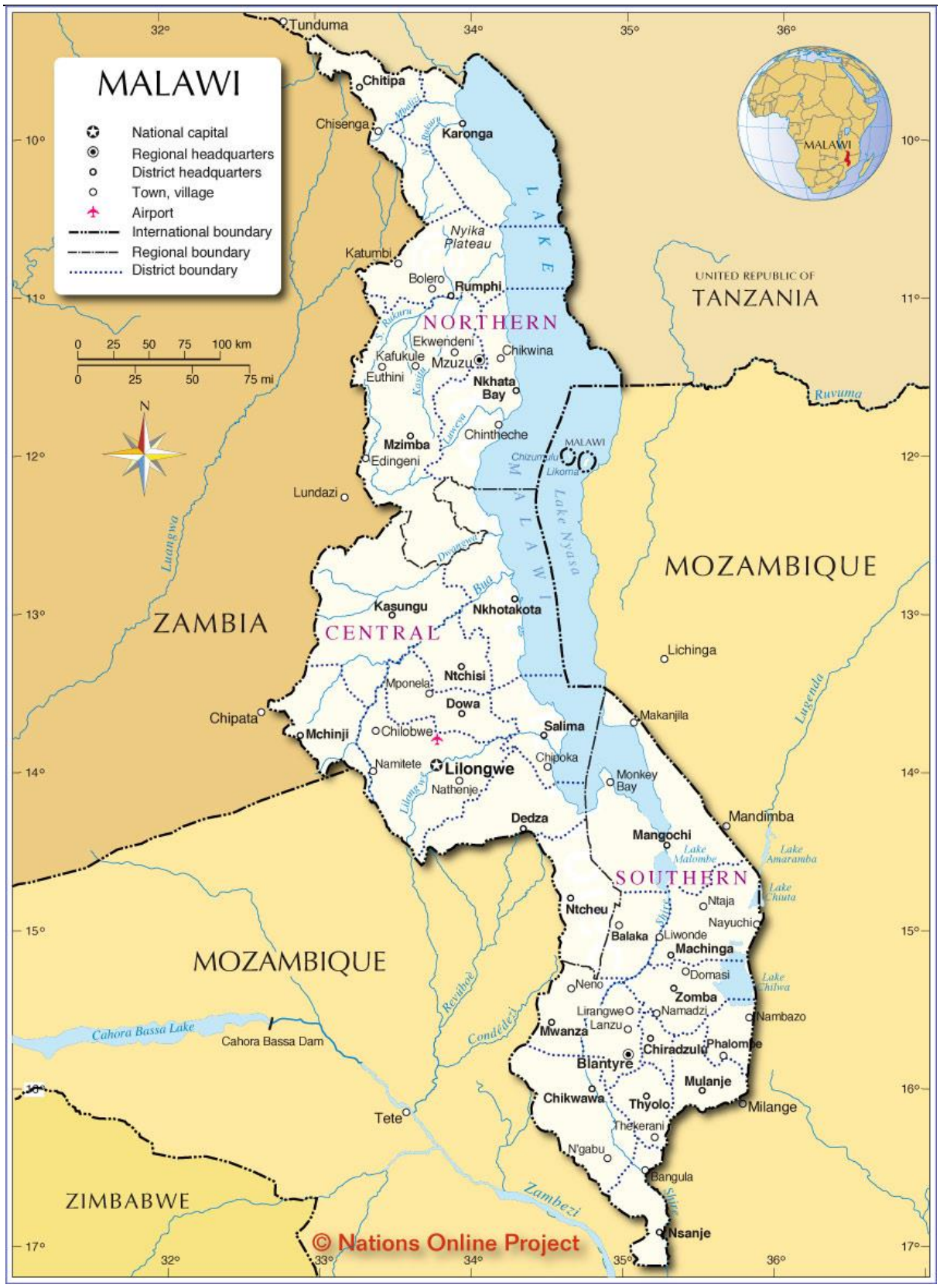
MALAWI
National capital
Regional headquarters
District headquarters
Town, village
Airport
International boundary
Regional boundary
District boundary
0 25 50 75 100 km
0 25 50 75 mi
N
Tunduma
Chitipa
Chisenga
Karonga
Nyika Plateau
Katumbi
Bolero
Rumphi
NORTHERN
Ekwendeni
Mzuzu
Chikwina
Kafukule
Euthini
Nkhata Bay
Chintheche
Mzimba
Edingeni
Lundazi
LAKE MALAWI
Lake Nyasa
UNITED REPUBLIC OF TANZANIA
MOZAMBIQUE
ZAMBIA
Kasungu
Nkhotakota
CENTRAL
Lichinga
Ntchisi
Mponela
Dowa
Chipata
Mchinji
Chilobwe
Salima
Makanjila
Namitete
Lilongwe
Nathenje
Chipoka
Monkey Bay
Dedza
Mandimba
Mangochi
SOUTHERN
Ntcheu
Ntaja
Nayuchi
Balaka
Liwonde
Machinga
Domasi
Neno
Zomba
Lirangwe
Namadzi
Nambazo
Mwanza
Lanzu
Chiradzulu
Phalombe
Blantyre
Mulanje
Chikwawa
Thyolo
Milange
Tete
Thekerani
N'gabu
Bangula
Nsanje
Cahora Bassa Lake
Cahora Bassa Dam
ZIMBABWE
Zambezi
© Nations Online Project

Figure 1: Map of Malawi showing some of the Districts in Malawi

The design and implementation of the above initiatives will be founded on three main principles namely *(1) Community inclusion and use of local knowledge and skills, (2) Particular attention to socially disadvantaged groups such as children and people with disabilities, (3) Build Back Better, Smarter and longer term disaster risk management.*

2.0 Background Information

Malawi is exposed to a number of hydro-meteorological hazards including floods, droughts, hailstorms, strong winds, and landslides. The intensity and frequency of hydro-meteorological hazards in Malawi have been disproportionately increasing in recent decades, due to climate change and variability, as well as other factors such as population growth, urbanization and environmental degradation.

The impacts of such hazards have already severely disrupted food production, led to the displacement of communities, loss of life and public and private assets, and has caused an overall reduction of the national economy and community resilience. For instance, in 2015, Malawi faced one of the worst floods in decades that affected people and destroyed both public and private infrastructure in 15 districts namely Nsanje, Chikwawa, Phalombe, Zomba, Blantyre, Chiradzulu, Thyolo, Mulanje, Balaka, Machinga, Mangochi, Ntcheu, Salima, Rumphi and Karonga.

In order to properly manage these hazards and reduce their impacts on lives, livelihoods, health, assets and the socio-economic development of the country, the Government of Malawi has moved swiftly to create an enabling environment by among other things developing a National Disaster Risk Management (NDRM) Policy whose goal is: "to sustainably reduce disaster losses in lives and in the social, economic and environmental assets of communities and of the nation." Further to this, the Government of Malawi has developed the National Disaster Risk Management and Resilience Framework (NDRMRF) for the period 2015-2019. The NDRMRF provides the much needed guidance on Disaster Risk Management and emphasizes on a need for shared responsibility and coordinated nation-wide effort to make Malawi better and able to withstand and recover from disasters.

Following the January, 2015 floods, the Government of Malawi with support from the United Nations Development Programme (UNDP) and the European Union conducted a comprehensive Post Disaster Needs Assessment (PDNA). The PDNA highlighted that, the January 2015 rainfall was the highest on record for Malawi and constitutes a 1 in 500 year event, and caused significant flooding – predominantly in the Southern Region, exacerbating an already precarious situation for rural households in this region. It is

estimated that the floods affected 1,150,000 people, displaced 336,000 and killed 104 people, and inflicted substantial damages and losses in the productive, public infrastructure and social service sectors, including private and community assets. The floods washed away livestock, destroyed thousands of buildings, houses and assets, and damaged roads, bridges, irrigation infrastructure and school and health facilities. Table 1 below presents the extent of loss that the country incurred on damaged and destroyed physical assets after the January, 2015.

Table 1: Extent of Loss on Damaged/Destroyed Physical Assets (PDNA)

Physical Assets Damaged or Destroyed Physical Asset	**Baseline**	**Damaged or Destroyed**	**Loss (%)**
Houses	1,694,569	523,347	31
Crop Land Destroyed (Ha)	1,800,629	89,110	5
Livestock	47,561,665	195,019	0.4
Health facilities	473	22	4.6
Number of Community Based Structures	6,285	1,233	20
Water Intake Structures	59	36	61
Hydrological Stations	45	14	31
Dams	18	4	22
Boreholes	23,387	2,940	13

In addition to the above damages to assets, the 2015 floods resulted in numerous rivers and streams changing courses and damaging flood protection structures and community based early warning systems.

In response to the above loss, the Malawi Government through the Malawi Flood Emergency Recovery Project (MFERP) is implementing interventions and activities whose objectives are to sustainably restore agricultural livelihoods, reconstruct critical public infrastructure to improved standards in the flood-affected districts, and improve the Government of Malawi's disaster response and recovery capacities. This will be achieved through a combination of recovery interventions across the most affected sectors, aimed at the following key outcomes:

a) Sustainable restoration of agricultural production and livelihoods as well as enhanced food security for the flood-affected people;

b) Reconstruction and improvement of roads, schools, as well as health, irrigation, water resources and water supply facilities to disaster resilient standards; and

c) Institutionalization and adoption of strengthened and improved disaster recovery and response systems.

Therefore, the activities proposed under the MFERP are based on a prioritization of the most critical needs identified by the PDNA, including the transport, agriculture and other public infrastructure sectors, and are in line with the National Disaster Risk Management and Resilience Framework (NDRMRF). Furthermore, the MFERP also intends to move the vulnerability-reduction agenda forward to help Malawi mitigate similar disasters in the future.

Specifically under the component "Infrastructure Rehabilitation and Reconstruction", the Project has isolated resources to support the rehabilitation of flood prevention and protection structures such as dykes, dams and drainage structures. The aim for the rehabilitation of these structures is to help reduce the flood risk levels and vulnerability of communities including valuable physical asserts some of the districts affected by the 2015 floods.

3.0 OBJECTIVES

The main objective of this consultancy is to design and supervise the rehabilitation of flood prevention and protection structures in some of the districts affected by the 2015 floods so as to help reduce the flood risk levels and vulnerability of communities including valuable physical asserts.

The specific objective of the assignment will include but not limited to the following:

a) Assess the condition of the existing flood prevention and protection structures;

b) Screen subprojects for Environmental and Social impacts and prepare the required instruments Environmental and Social Impact Assessment (ESIA), if required and Environmental and Social Management Plans – ESMPs and Resettlement Action Plans – RAP for the rehabilitation of the targeted flood prevention and protection structures;

c) Prepare detailed designs including tender documents, Engineering cost estimates, construction drawings, and implementation plan and framework for the targeted flood prevention and protection structures;

d) Assist client in the pre-qualification of suitable contractors and evaluation of the construction tenders, assist in negotiation and award of construction contracts and prepare technical inputs for tender documentation for the rehabilitation works of the existing flood prevention and protection structures.

Time-Based

e) Supervision of works during the implementation of the rehabilitation works for the existing flood prevention and protection structures; and

f) Prepare construction supervision and quality assurance plan, and broad institutional framework including O&M plan.

3.0 Scope of Assignment:

The consultant is expected to undertake this assignment by cautiously reviewing the Environmental and Social Management Framework, the Resettlement Policy Framework and the project's Implementation Manual prior to assessing and analyzing the condition of existing flood data and engaging key stakeholders including the affected communities to have a good understanding of the flooding problems in the targeted flood affected districts.. The consultant is further expected to undertake extensive field visits and surveys to collect all the necessary additional data to form the basis for the analysis, discussion and conclusions including the designs that will done under this assignment.

The table 2 highlights the list of targeted existing infrastructure for rehabilitation. The list also includes a total of 4 targeted Flood Risk Management interventions in Nsanje (2no) and Chikwawa (2no) which will be designed by ISP under the Shire River Basin Management Programme (Phase 1) Project but implemented under this assignment.

District	**Prioritized flood prevention and protection structures**	**Description of the structures**
Machinga	Dyke along Lingoni River (on both banks)	The dyke is approximately 1km and located in Chibulubulu Area (GVH Manja) and Liundi Area (GVH Liundi) in T/A Mposa
Phalombe	1. Dykes along Phalombe River	Bona Dyke (4km), Malambwe dyke (1km) located in GVH Bona and Njovu and Chimombo under T/A Jenala
	2. Dyke along Sombani River	Dyke (2km) is located in GVH Nampinga under T/A Kaduya
	3. Dyke along Chisengeleni River	Dyke (3km) is located in GVH Namasoko and Mphonde under T/A Mkhumba
	4. Dyke along Phindegwe River	Dyke (3km) is located in GVH Mpinda and Chiwalo under T/A Chiwalo

Time-Based

Mulanje	1. Retaining wall (masonry)	The retaining wall is approximately 400m and is located between GVH Nogwe and GVH Kuchombe;
	2. Dyke along Thuchira River	Dyke is located in Chingoli area of Kalilima Village in T/A Juma and in GVH Kuchombe under T/A Mkhumba
Rumphi	1. Dyke along South Rukuru River	1.5km running from T/A Mwamulowe
	2. Luhono Dam	Rehabilitation of breached Luhono Dam
Karonga	1. Dyke along North Rukuru River	The dyke is approximately 3.5km and runs from Mwanganda Village to M1 road (Karonga–Songwe Border).
	2. Dyke along Kiwe River	The dyke is approximately 4km and runs from Chisi Area to Kaporo Area (downstream of Kiwe area)
Ntcheu	Migwere Dam on Gala River	Rehabilitation of breached dam located in Chapita Village and Gala Village under T/A Masasa
Salima	Dyke along Lingadzi River	The dyke is located in GVH Kasache
Nsanje	Implementation of 2no. targeted interventions (Flood risk management interventions)	Consultant will be required to review designs (done by ISP-SRBMP) and supervise the implementation of the works
Chikwawa	Implementation of 2no. targeted interventions (Flood risk management interventions)	Consultant will be required to review designs (done by ISP-SRBMP) and supervise the implementation of the works

The detailed scope of work for the above targeted interventions should include, but not limited to, the following:

Task 1: Assessment of the condition of the existing flood prevention and protection structures

The consultant will be expected carry out necessary field surveys and investigations to collect additional data that may be required for assessing and analyzing the condition flood prevention and protection structures to enable rehabilitation and restoration by among other things undertaking but not limited to the following tasks:

a) Identify and map out the existing flood prevention and protection structures.

b) Undertake hydrological assessment and topographic survey of the affected flood

protection for the sake of designing appropriate flood protection structures;

c) Conduct physical assessment on critical points on the existing structures (embankments) to ascertain whether structures are stable and sound;

d) Screen subproject sites for potential environmental and social impacts during civil works;

e) Identify suitable borrow areas as possible sources of construction materials (soil and riprap);

f) Carry out rapid soil investigation (geotechnical) to determine the soil and foundation properties including burrow pits to assist in the design and construction of the improved flood protection structures;

Task 2: Stakeholder Consultations and Gender Consideration

1. Stakeholder Consultation

Stakeholder consultation is one of the major activities that the consultant has to undertake during the assignment and raised issue/concerns should be documented in each site specific ESMP and/or RAP. The specific aims of consultations with stakeholders are to:

a) Ensure that the stakeholders are well informed about the project and they own it.

b) Enable interested parties to assess effectiveness and opportunities that arise as a result of the assignment (implementation of the rehabilitation works).

c) Reduce the potential for misunderstanding and subsequent stakeholders' disaffection due to real or perceived exclusion from the impact assessment and permitting process.

d) Identify areas of concern for stakeholders, and allow them to provide input to the identification, design and implementation of the rehabilitation works including environmental and social assessment processes.

e) Ensure that the necessary regulatory requirements are met.

As a guide, the primary stakeholders of the assignment (project) will be the affected

communities in all the targeted districts and institutional stakeholders are secondary. The institutional stakeholders comprise government and local authorities (15 districts), community interest groups, private and public sectors, Civil Protection Committees at District (DCPC), Civil Protection Committees at Traditional Authority Level (ACPC) and Village (VCPC) level (including Village Development Committees, and Area Development Committees, District Executive Committees where necessary), CBOs and NGOs (international, national, and local). Consultations and interaction with stakeholders and stakeholder groups should be effected in a formal and structured manner throughout the implementation of this assignment (and where necessary using informal mechanisms).

2. Gender Consideration

In order to ensure that the existing gender inequalities within the communities reached are not increased and that benefits from the envisaged rehabilitation work of the targeted flood prevention structures are fully realized, gender perspective will be considered as a cross cutting issue during the implementation of this assignment. Such issues, along with mitigation measures to address them, should be identified and documented in site specific ESMPs and RAPs. The consultant is expected to provide guidance to the implementing agencies/contractors in order to adopt a gender sensitive approach during the implementation by amongst other things:

a) Increase gender awareness during implementation

b) Create enabling environment for participation of women and other vulnerable groups

c) Ensure equal participation of men and women during planning stage, consultation sessions, training sessions, design and construction stages;

d) Ensure that both women and men are equally represented in decision making forums;

e) Use gender terms as appropriate; and

f) Promote division of labour.

3. Linkages with other relevant projects and Initiatives

The Consultant will interface with, and harmonize where relevant and possible outputs, products under similar consultancies carried out for the Shire River Basin Management Project, Global Environmental Fund (GEF)-UNDP funded Project, and ", the Green

Climate Fund Project, including the ongoing "Integrated Flood Risk Assessment Study for Malawi" being supported by the World Bank. This is expected to be achieved through regular communications, and exchange of information to facilitate each other's work.

In particular, under the Shire River Basin Management Project, a consultant (Implementation Service Provider for Flood Risk Management) is implementing flood management interventions in the districts of Chikhwawa and Nsanje which are also targeted under this assignment. These activities are very relevant to this assignment and as such the Consultant will be required to collaborate with the ISP on the selected interventions for the two districts which will be supported under MFERP.

Task 3: Capacity-Building/Training

Under this assignment, capacity building will include building the skills of stakeholders involved with developing and implementing the assignment (interventions). The institutions to be targeted in particular for the Training and Capacity-building activities should include:

a) The respective Civil Protection Committees at District, Traditional Authority Level and Village;

b) Relevant District Authorities and their technical and planning staff;

c) Water Resources Department, DoDMA, Irrigation and DCCMS;

The consultant shall provide training to the relevant stakeholders and any proposed institutions on the operation and maintenance of the flood prevention and protection structures.

The Consultant shall also provide the opportunity for seconded officials (two engineers) from the Client to participate fully in the planning phase (assessment and analysis) and be exposed to processes and procedures commensurate with a design office in a consulting engineering environment including quality assurance procedures and processes utilized by the Consultant in the provision of the Services.

The Consultant shall further be expected provide a concise status report to the Client on the activity and performance of the seconded official at agreed intervals during the implementation of the assignment.

Task 4: Environmental Screening and Management Plan

Time-Based

For the rehabilitation works of the targeted flood prevention structures to be environmentally and socially acceptable, the consultant will be required to undertake but not limited to the following:

a) Carry out social and environmental screening of the each targeted work (site) guided by both the Environmental and Social Management Framework (ESMF), and the resettlement policy framework (RPF) the Environmental and Social Management Framework (ESMF), and as outlined in the MFERP implementation Manual;

b) Prepare Framework (ESMF) and the Resettlement Policy Framework (RPF) drafted and disclosed by the Government of Malawi during project preparation, and as outlined in the MFERP implementation Manual; ESMPs/RAPs guided by both the Environmental and Social Management

The EMP should have clear recommendations and assessments stating what mitigation measures, construction and maintenance are required in terms of the works ability to reduce the potential negative impact of the hazard, or to enhance the potential positive impact of interventions. Where mitigation works and/or actions are proposed, an assessment of the effects that the proposed works and/or actions may have on other properties including public infrastructure must be included in the report. Where mitigative works and/or actions designed to reduce hazards, or to enhance positive impacts, are contemplated, prior to completing the report and expending time and money on detailed design, the proponent should confirm that the works and/or actions proposed will be accepted by Client and the World Bank and that they would meet regulatory requirements.

Task 5: Detailed Designs

The consultant will be expected to undertake but not limited to the following:

a) Carry out detailed designs of all the targeted flood risk management structures (dams, dykes etc. outlined in table 2) for rehabilitation taking into account the results of the investigations;

b) Prepare detailed design report, tender/bidding documents, bill of quantities, cost estimates, working drawings for the interventions. Include ESMP activities that relate to contractor operations into tender documents. The tender document shall incorporate activities for mitigation measures for environmental impact including provision for pricing for this;

c) Review designs, working drawings and tender documents for the 4 targeted

interventions (Nsanje and Chikwawa Districts) and undertake necessary measures to ensure their adequacy for implementation;

d) Any other activities for delivering the envisage outputs of the Project and achieving desired outcome; and

e) Prepare detailed implementation schedule/plans for interventions.

Task 6: Procurement of Contractors and Construction Supervision

The Consultant shall be expected to provide support for any procurement activities associated with this assignment. This will include any specifications for the works, bid documents, support for evaluations, etc. and selection of contractors/suppliers to implement the rehabilitation works. These should be in accordance with World Bank Procurement Procedures applicable to this project.

4.0 EXPECTED OUTPUTS

The overall outputs of the assignment are the detailed designs, bidding documents and cost estimates for the targeted flood protection structures to be rehabilitated in 15 districts across the country. The Specific outputs will include the following:

a) Inception Report: shall be done by the selected Consultant two weeks after the commencement of the assignment. In it, the Consultant's proposal shall be discussed with the Client and all aspects and uncertainties will be clarified including stakeholder consultations, and training plan for the seconded client staff. The inception report shall include a detailed work program, broken down to individual tasks and indicating the contributions by all study personnel, shall be presented. Estimation of the required staff-months shall be required.

b) Environmental and Social Screening Report, and Environmental and Social Management Plan for implementing the interventions;

c) Detailed designs and Tender documents including specifications, engineering cost estimates and construction drawings, and implementation plan for the recommended interventions;

d) Construction supervision and quality assurance plan, and institutional framework including O&M plan, and;

e) Final consultancy report after the conclusion of the assignment.

5.0 REPORTING ARRANGEMENTS AND REVIEWS

The client considers of utmost importance the timely elaboration and submission of pertinent reports during the course of the work. The consultant shall prepare and submit reports of the consultancy written in English language to the client in electronic copies on five [5] CD ROM preferably in MS Word for the draft report, and in PDF as well as in MS Word format for the final documents. For the drawings, electronic copies will have to be supplied in AutoCAD version 2011 and PDF on a CD ROM. All supporting documentation, maps, calculations, modelling outputs, photographs, records of meetings held will be supplied in useable digital format.

The draft reports shall also be submitted in ten (10) hard copies (except where stated otherwise) for approval within two (2) weeks of submission. After incorporating comments from the client, fifteen (15) copies of the edited report shall be submitted in final form to the client within two weeks after approval of the draft report.

The following are details of the reports to be submitted:

Table 2: Summary of the Expected Deliverables

Report No.	**Report Description**	**No. of hard copies (Microsoft Word format)**	**Due date** (No. of months from commencement date)
1.	Draft Inception Report	10	2 weeks
2.	Final Inception Report	15	1.0
3.	Draft Environmental and Social Screening Report, and Environmental and Social Management Plan	10	2.0
4.	Final Draft Environmental and Social Screening Report, and Environmental and Social Management Plan	15	2.5
5.	Draft Detailed designs and Tender documents including specifications, engineering cost estimates and construction drawings, and implementation plan for the recommended interventions;	10	3.5

Time-Based

Report No.	Report Description	No. of hard copies (Microsoft Word format)	Due date (No. of months from commencement date)
6.	Final Detailed designs and Tender documents including specifications, engineering cost estimates and construction drawings, and implementation plan for the recommended interventions;	15	4.0
7.	Construction supervision and quality assurance plan, and broad institutional framework including O&M plan and manual	15	4.0
8.	Final Consultancy Report at the end of the Supervision Phase	10	12.0

5.1 Progress Reports and final Consultancy Report

The consultant will be required to prepare monthly progress reports (5 hard copies) and minutes of site meetings during the implementation period of the interventions.

The final consultancy report will be prepared towards the end of the whole consultancy service and will summarize the activities, bottlenecks including solutions during the whole period of implementation of the assignment and contain "as built drawings.

5.2 Reporting Arrangements

The Consultant will report to the Chief Director for Irrigation and Water Development, (attention the Director of Water Resources) through the Project Coordinator for Malawi Floods Emergency Recovery Project. The Consultant will be engaged on a lump sum contract arrangement.

6.0 TIME FRAME

This is an emergency work which is expected to start as soon as possible and executed within the shortest period in order to reduce vulnerability of communities to floods. The consultancy is therefore expected to be executed and completed within a maximum period of 12 months including the supervision of the works.

7.0 OBLIGATIONS OF THE CLIENT

The client shall assist the consultant in providing available study reports and other documents that may be relevant to the assignment. Where necessary, the client will assist in making arrangements for the consultant to meet relevant agencies, districts and other key stakeholders. However, the Consultant will be expected to make his/her own arrangements for office space, equipment, telecommunications, vehicles and survey equipment. In addition to the above, the client will assist with the following:

7.1 Liaison

The Department of Water Resources will provide liaison through the Programme Management Unit (PMU) of MFERP and will ensure that the Consultant has access to all information required for timely execution of the assignment.

7.2 Counterpart Staff

The Client will provide counterpart staff (two engineers) to work with the Consultant and build their capacity in the design of the engineering structures proposed under this assignment in order to register with Malawi Board of Engineers. The Counterpart staff will also help facilitate channels of communication during the implementation of the assignment.

7.3 Immigration and Residence Permits

The Government through the PMU will provide the Consultant any assistance required to obtain necessary immigration and residence work permits for the approved expatriate personnel that may be required for the assignment.

8.0 OBLIGATIONS OF THE FIRM

The consulting firm is expected to be fully self- sufficient in terms of accommodation, office space, office supplies, office equipment and transport. The data, documentation and assets from the consultancy will remain in the custody of the client at the end of the consultancy. The Consultant will make arrangements to ensure a participatory/ consultative approach with a high degree of public involvement and participation. This includes arrangements of the envisaged stakeholder workshops.

The consultant shall be responsible for coming up with a training plan and knowledge transfer to counterpart staff to be approved by the client.

9.0 CAPACITY OF THE DESIRED FIRM

This assignment is predominantly oriented towards the design of Flood Prevention and Protection interventions as such the firm should have a strong bias towards personnel with sound experience and expertise in water engineering and flood risk management.

The proposed key personnel for the desired firm are as follows:

a) Project Team leader: The Project Team Leader should have at least a MSc Degree in Hydraulic Engineering with a minimum of 15 years relevant experience in design, construction and supervision of dykes, dams and river training and bank protection, but also in team leadership in projects of similar and or large size. At least one of these projects should have been in sub-Saharan Africa.

b) Water Resources Engineer /Hydrologist with at least 10 years relevant experience in water resources management and flood management, and an MSc Degree in Engineering Hydrology or equivalent.

c) Environmental and Social Expert with at least a MSc Degree with bias in Environmental Management and sociology or equivalent with minimum experience of 5 years in undertaking environmental and social studies on water related assignments

d) Civil Engineer with a MSc degree in Civil Engineering or equivalent, or minimum a Bachelors degree and at least 10 years of relevant experience in design, construction and supervision of dykes, dams and river training and bank protection works;

e) The Surveyor with Bachelor of Science Degree or equivalent with a minimum of 5 years relevant experience in topographic surveys of flood mitigation infrastructure.

APPENDIX B - KEY EXPERTS

Name	Position

Time-Based

Lee, Sang Beom	Project Team Leader
Choung, Se Young	Civil Engineer

APPENDIX C – REMUNERATION COST ESTIMATES

A. Remuneration						
No.	**Name**	**Position**	**Person-Month Remuneration Rate**		**Time Input in Person/Month**	**[US Dollars]**
KEY EXPERTS (Construction Supervision Stage)						
K-1	**Lee, Sang Beom**	Project Team Leader	[Home]			
			[Field]	15,000	6	90,000
K-3	**Choung, Se Young**	Civil Engineer	[Home]			
			[Field]	14,000	6	84,000
Sub-Total					**12**	**174,000**
NK-1	**TBN**	Civil Engineer	[Home]			
			[Field]	12,000	6	72,000
NK-2	**TBN**	Site Inspector 1	[Home]			
			[Field]	4,000	6	24,000
NK-3	**TBN**	Site Inspector 2	[Home]			
			[Field]	4,000	6	24,000
NK-4	**TBN**	Site Inspector 3	[Home]			
			[Field]	4,000	6	24,000
Sub-Total					**24**	**144,000**
Total					**26**	**318,000**

APPENDIX D – REIMBURSABLE EXPENSES COST ESTIMATES

No.	**Type of reimbursable Expenses**	**Unit**	**Unit Cost(USD)**	**Quantity**	**Amount(USD)**
1	Per Diem Allowances				

Time-Based

	International Experts	Month	3,000	18	54,000
	National Experts	Month	500	18	9,000
2	International flights (Korea-Blantyre-Korea)				
	International Air Fare	R-trip	2,100	3	6,300
	Excess Baggage Charge	R-trip	100	3	300
3	Miscellaneous Travel Expenses (airport tax, visa, etc.)	R-trip	200	3	600
4	Cost of Office Accommodation				
	Office Rental	Month	2,000	12	24,000
	Office Operation & Maintenance	Month	500	12	6,000
6	Communication costs between Malawai and Korea (Phone, Fax, Courier, Internet, etc.)	Month	300	12	3,600
7	Drafting and reproduction of reports	LS	2,000	1	2,000
8	Rental of Vehicle	Cars	3,000	12	36,000
9	Surveys (Topographical Survey, Geotechnical Investigations, Materials Test, etc.)	LS	10,000	1	10,000
10	Support Staff				
	Manager cum Secretary	Person Month	200	6	1,200
	Office Assistant	Person Month	200	12	2,400
	Cad Draftsman	Person Month	200	8	1,600
11	Duty Travel	Day	40	48	1,920
12	Overseas Training & Seminar	LS	5,350	1	5,350
	Total Costs				**164,270**

Time-Based

APPENDIX E - FORM OF ADVANCE PAYMENTS GUARANTEE
[See Clause GCC 41.2.1 and SCC 41.2.1]

{Guarantor letterhead or SWIFT identifier code}

Bank Guarantee for Advance Payment

Guarantor: _____ *[insert commercial Bank's Name, and Address of Issuing Branch or Office]*

Beneficiary: _____ *[insert Name and Address of Client]*

Date: _____*[insert date]*____

ADVANCE PAYMENT GUARANTEE No.: _____*[insert number]*_____

We have been informed that _____ *[name of Consultant or a name of the Joint Venture, same as appears on the signed Contract]* (hereinafter called "the Consultant") has entered into Contract No. _____ *[reference number of the contract]* dated ___*[insert date]*_____ with the Beneficiary, for the provision of _____ *[brief description of Services]* (hereinafter called "the Contract").

Furthermore, we understand that, according to the conditions of the Contract, an advance payment in the sum of _____ *[insert amount in figures]* (_____) *[amount in words]* is to be made against an advance payment guarantee.

At the request of the Consultant, we, as Guarantor, hereby irrevocably undertake to pay the Beneficiary any sum or sums not exceeding in total an amount of _____ *[amount in figures]* (_____) *[amount in words]*[1] upon receipt by us of the Beneficiary's complying demand supported by the Beneficiary's ~~a~~ written statement, whether in the demand itself or in a separate signed document accompanying or identifying the demand, stating that the Consultant is in breach of their obligation under the Contract because the Consultant:

(a) has failed to repay the advance payment in accordance with the Contract conditions, specifying the amount which the Consultant has filed to repay.

[1] The Guarantor shall insert an amount representing the amount of the advance payment and denominated either in the currency(ies) of the advance payment as specified in the Contract, or in a freely convertible currency acceptable to the Client.

It is a condition for any claim and payment under this guarantee to be made that the advance payment referred to above must have been received by the Consultant on their account number _____ at _____ *[name and address of bank]*.

The maximum amount of this guarantee shall be progressively reduced by the amount of the advance payment repaid by the Consultant as indicated in certified statements or invoices marked as "paid" by the Client which shall be presented to us. This guarantee shall expire, at the latest, upon our receipt of the payment certificate or paid invoice indicating that the Consultant has made full repayment of the amount of the advance payment, or on the __ day of _*[month]*_____, *[year]*__,[2] whichever is earlier. Consequently, any demand for payment under this guarantee must be received by us at this office on or before that date.

This guarantee is subject to the Uniform Rules for Demand Guarantees (URDG) 2010 revision, ICC Publication No. 758.

_____

[signature(s)]

{Note: All italicized text is for indicative purposes only to assist in preparing this form and shall be deleted from the final product.}

[2] Insert the expected expiration date. In the event of an extension of the time for completion of the Contract, the Client would need to request an extension of this guarantee from the Guarantor. Such request must be in writing and must be made prior to the expiration date established in the guarantee. In preparing this guarantee, the Client might consider adding the following text to the form, at the end of the penultimate paragraph: "The Guarantor agrees to a one-time extension of this guarantee for a period not to exceed [six months][one year], in response to the Client's written request for such extension, such request to be presented to the Guarantor before the expiry of the guarantee."

It is a condition for any claim and payment under this guarantee to be made that the advance payment referred to above must have been received by the Consultant on their account number _____ at _____ *[name and address of bank]*.

The maximum amount of this guarantee shall be progressively reduced by the amount of the advance payment repaid by the Consultant as indicated in certified statements or invoices marked as "paid" by the Client which shall be presented to us. This guarantee shall expire, at the latest, upon our receipt of the payment certificate or paid invoice indicating that the Consultant has made full repayment of the amount of the advance payment, or on the __ day of _*[month]*_____, *[year]*__,[2] whichever is earlier. Consequently, any demand for payment under this guarantee must be received by us at this office on or before that date.

This guarantee is subject to the Uniform Rules for Demand Guarantees (URDG) 2010 revision, ICC Publication No. 758.

_____

[signature(s)]

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[2] Insert the expected expiration date. In the event of an extension of the time for completion of the Contract, the Client would need to request an extension of this guarantee from the Guarantor. Such request must be in writing and must be made prior to the expiration date established in the guarantee. In preparing this guarantee, the Client might consider adding the following text to the form, at the end of the penultimate paragraph: "The Guarantor agrees to a one-time extension of this guarantee for a period not to exceed [six months][one year], in response to the Client's written request for such extension, such request to be presented to the Guarantor before the expiry of the guarantee."